

Uber

Press reports suggest CA Supreme Court may be supportive of Prop 22

Reiterate Rating: BUY | PO: 87.00 USD | Price: 63.97 USD

California Supreme Court hearing appears to favor Prop 22

On Tuesday, the California Attorney General's office (representing the State) argued in support of Proposition 22 (Prop 22) along with the Protect App-Based Drivers Coalition (PADS) in the CA State Supreme court. After a lower court judge ruled in favor of the Service Employees International Union's lawsuit challenging the constitutionality of Prop 22 in August 2021, a California appeals court reversed the decision in March 2023. However, the appeals court severed multiple provisions of Prop 22 that had restricted the California state legislature's ability to authorize collective bargaining over drivers' compensation, benefits, or working conditions. Per press reports (including CalMatters), in yesterday's hearing on the validity of Prop 22, State Supreme court justices seemed to favor upholding the 2020 ballot initiative, with justices suggesting that state laws on "unlimited" power over workers' compensation don't override the power of a statewide ballot initiative. A panel of seven justices heard yesterday's arguments and will have up to 90 days to issue the final ruling.

Three of seven justices noted in favor of Prop 22 per reports

Per the San Francisco Chronicle and Bloomberg, the court questions and comments leaned towards maintaining the initiative's validity, with Chief Justice Patricia Guerrero questioning, "Isn't the initiative power equal to the Legislature?", and Justice Martin Jenkins noting that right to pass laws by initiative created a "sharing of legislative power" between voters and the state legislature. Per Bloomberg, Justice Goodwin Liu was "particularly vocal" against the argument that Prop 22 interferes with a 1918 constitutional amendment that gives the legislature "unlimited" power to oversee a workers' compensation system, noting "Why is that exclusive to the initiative power?".

Worst-case scenario could increase CA driver costs by 20%

If the California Supreme Court upholds Prop 22, Uber/Lyft/DASH would continue to operate under the status quo. An adverse decision could impact the worker classification of drivers in California, require additional payments for workers compensation, or rescind the 7/8 "supermajority" that is required for legislative changes to Prop 22. In an adverse outcome, we estimate driver costs in CA could increase by 20% [based on Bureau of Labor Statistics data](#), which would likely result in fewer drivers (and trips) and longer wait times. We estimate California may represent 8% of Uber's total gross bookings and up to 20% of Lyft's, and would expect Uber and Lyft to reduce driver availability (fewer rides) and have lower margins in California if Prop 22 is ruled unconstitutional.

We think most drivers prefer flexible employment

Based on industry surveys, we think most drivers prefer flexible employment. Despite negative headlines in Massachusetts on court proceedings, in Minnesota on pay increases, and on court risks in California, recent independent contractor plus (IC+) agreements (in NY State and Wash) have trended positively for gig economy employment, with additional ballot initiatives as a potential backstop. We think a favorable outcome in the CA case would be an important positive for gig economy sentiment (CART, DASH, LYFT, UBER), as it would suggest future ballot initiatives (if necessary) could have favorable outcomes. Reiterate Buy on Uber.

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Equity

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Stock Data

Price	63.97 USD
Price Objective	87.00 USD
Date Established	8-May-2024
Investment Opinion	C-1-9
52-Week Range	37.07 USD - 82.14 USD
Mrkt Val (mn) / Shares Out (mn)	133,156 USD / 2,081.5
Free Float	96.1%
Average Daily Value (mn)	1353.38 USD
BofA Ticker / Exchange	UBER / NYS
Bloomberg / Reuters	UBER US / UBER.N
ROE (2024E)	18.2%
Net Dbt to Eqty (Dec-2023A)	60.1%

Exhibit 1: Stocks mentioned

Prices and ratings for stocks mentioned in this report

BofA Ticker	Bloomberg ticker	Company name	Price	Rating
UBER	UBER US	Uber Technologies	US\$ 63.97	C-1-9

Source: BofA Global Research

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Price objective basis & risk**Uber (UBER)**

Our Uber PO is \$87 based on 24x 2025E FCF, a discount to the FANG group average at 25x. We see Uber as attractively valued with stronger revenue and FCF growth in 2026 than the FANG group.

Downside risks are 1) multiple compression given macro economic exposure, 2) slowing user & revenue growth due to competitive initiatives from Lyft, Didi or DoorDash, 3) new competition from self-driving technology companies, and 4) new regulations, fees, and/or minimum wages.

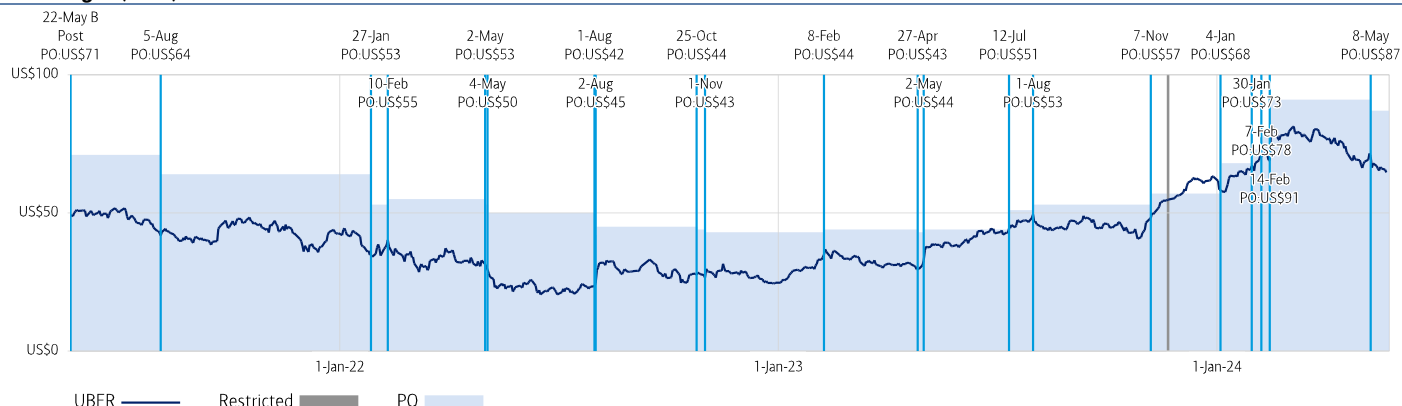
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Uber Technologies (UBER) Price Chart



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Equity Investment Rating Distribution: Technology Group (as of 31 Mar 2024)

Coverage Universe	Count	Percent	Inv. Banking Relationships ^{R1}	Count	Percent
Buy	217	54.25%	Buy	110	50.69%
Hold	94	23.50%	Hold	47	50.00%
Sell	89	22.25%	Sell	25	28.09%

Equity Investment Rating Distribution: Global Group (as of 31 Mar 2024)

Coverage Universe	Count	Percent	Inv. Banking Relationships ^{R1}	Count	Percent
Buy	1848	53.43%	Buy	1067	57.74%
Hold	810	23.42%	Hold	468	57.78%
Sell	801	23.16%	Sell	370	46.19%

^{R1} Issuers that were investment banking clients of BofA Securities or one of its affiliates within the past 12 months. For purposes of this Investment Rating Distribution, the coverage universe includes only stocks. A stock rated Neutral is included as a Hold, and a stock rated Underperform is included as a Sell.

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Investment rating	Total return expectation (within 12-month period of date of initial rating)	Ratings dispersion guidelines for coverage cluster ^{R2}
Buy	≥ 10%	≤ 70%
Neutral	≥ 0%	≤ 30%
Underperform	N/A	≥ 20%

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